



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36063276

Date: JAN. 22, 2025

Appeal of California Service Center Decision

Form I-129, Petition for Nonimmigrant Worker (H-1B)

The Petitioner seeks to extend the Beneficiary's temporary employment under the H-1B nonimmigrant classification for specialty occupations. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(i)(b), 8 U.S.C. § 1101(a)(15)(H)(i)(b). The H-1B program allows a U.S. employer to file a petition with U.S. Citizenship and Immigration Services (USCIS) to temporarily employ a qualified foreign worker in a position that requires both: (a) the theoretical and practical application of a body of highly specialized knowledge; and (b) the attainment of a bachelor's or higher degree in the specific specialty (or its equivalent) as a minimum prerequisite for entry into the position.

The California Service Center Director denied the Form I-129, Petition for a Nonimmigrant Worker (petition), concluding the record did not establish that the Beneficiary was qualified to occupy the offered position. The matter is now before us on appeal under 8 C.F.R. § 103.3. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. Section 291 of the Act; *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). We review the questions in this matter *de novo*. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon *de novo* review, we will withdraw the Director's decision and remand the matter for entry of a new decision consistent with the following analysis.

Although we conduct *de novo* review on appeal, a threshold matter must be resolved before we may address the merits of the Director's decision and the Petitioner's appeal. Specifically, a beneficiary's credentials to perform a particular job are relevant only when the job is found to be a specialty occupation. We are required to follow long-standing legal standards and determine first, whether the offered position qualifies for classification as a specialty occupation, and second, whether the Beneficiary was qualified for the position at the time the nonimmigrant visa petition was filed. *Cf. Matter of Michael Hertz Assocs.*, 19 I&N Dec. 558, 560 (Comm'r 1988) ("The facts of a beneficiary's background only come at issue after it is found that the position in which the petitioner intends to employ him falls within [a specialty occupation].").

We note within the Director's decision they indicated the position did not qualify as a specialty occupation. The Director stated:

When USCIS makes a decision for eligibility as an H-1B nonimmigrant, it first determines whether the position is a specialty occupation. If USCIS determines that the position is not a specialty occupation, it need not determine whether the beneficiary is qualified for the position. As discussed above, you have not shown that the proffered position is a specialty occupation. However, as a separate and independent eligibility issue, you have not shown that the beneficiary is qualified to perform the duties of the proffered position.

Even though the decision reflects the Director presented analysis relating to whether the position qualifies as a specialty occupation, and that they made a determination on that issue, the decision notice does not contain any such analysis. Because the specialty occupation issue must be resolved before the Beneficiary's qualifications, we will remand the matter for the Director to make that determination, especially focusing on whether the position would qualify as a specialty occupation as the U.S. Department of Labor's *Occupational Outlook Handbook* reflects a common degree field for this occupation is a bachelor's-level degree in business. This generalized requirement does not appear to satisfy the statutory or regulatory definition of a specialty occupation. But this issue was not addressed in the below decision and the record is not developed on that subject.

Accordingly, we will withdraw the Director's decision and remand the matter to consider the specialty occupation issue and other issues and enter a new decision. The Director may request any additional evidence considered pertinent to the new determination and any other issue. As such, we express no opinion regarding the ultimate resolution of this case on remand.

ORDER: The decision of the Director is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.